

Opinion of the Court

ties’” (quoting *Loving v. United States*, 517 U.S. 748, 757 (1996))). These considerations also counsel against allowing a damages claim to proceed against the Executive Officials. See *Cheney, supra*, at 385 (noting that “special considerations control” when a case implicates “the Executive Branch’s interests in maintaining the autonomy of its office and safeguarding the confidentiality of its communications”).

In addition to this special factor, which applies to the claims against the Executive Officials, there are three other special factors that apply as well to the detention policy claims against all of the petitioners. First, respondents’ detention policy claims challenge more than standard “law enforcement operations.” *United States v. Verdugo-Urquidez*, 494 U.S. 259, 273 (1990). They challenge as well major elements of the Government’s whole response to the September 11 attacks, thus of necessity requiring an inquiry into sensitive issues of national security. Were this inquiry to be allowed in a private suit for damages, the *Bivens* action would assume dimensions far greater than those present in *Bivens* itself, or in either of its two follow-on cases, or indeed in any putative *Bivens* case yet to come before the Court.

National-security policy is the prerogative of the Congress and President. See U.S. Const., Art. I, §8; Art. II, §§1, 2. Judicial inquiry into the national-security realm raises “concerns for the separation of powers in trenching on matters committed to the other branches.” *Christopher v. Harbury*, 536 U.S. 403, 417 (2002). These concerns are even more pronounced when the judicial inquiry comes in the context of a claim seeking money damages rather than a claim seeking injunctive or other equitable relief. The risk of personal damages liability is more likely to cause an official to second-guess difficult but necessary decisions concerning national-security policy.

For these and other reasons, courts have shown deference to what the Executive Branch “has determined . . . is ‘essential to national security.’” *Winter v. Natural Resources De-*